NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH-II
NEW DELHI

CAA-140/ND/2019

CORAM:
SMT.INA MALHOTRA
Hon'ble Member (J)

SH. L.N GUPTA
Hon'ble Member (T)

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING OF NEW DELHI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 13.11.2019

NAME OF THE COMPANY: In the matter of Amalgamation
IN THE MATTER OF:

1. M/s Indian Steel and Power Private Limited
   Registered office at Village Charauda,
   Mohandi Road, Siltara District,
   Raipur, Chattisgarh-493221

Applicant No.1/Transferor Company

WITH

2. M/s Pushp Steels and Mining Private Limited
   Registered office at 751, Ground Floor,
   Kundenwalan Street, Ajmeri Gate
   Delhi-110006

Applicant No.2/ Transferee Company

SECTION OF THE COMPANIES ACT: 230-232

ORDER

As Per Ms. Ina Malhotra (Member Judicial)

1. This petition by way of Second Motion is admitted and is fixed for hearing and final disposal on 7th January 2020.

2. Learned Counsel for the Petitioner Companies submits that in terms of the Order dated 22nd July, 2019 passed by this Tribunal in Company Application No.CA(CAA)-105(ND)2019, the meetings of all the Equity Shareholders, Preferential Shareholders and Unsecured Creditors of the applicant companies for the proposed Scheme of Amalgamation had been dispensed with in view of their consent affidavits being on record.

There are no secured creditors of either of the Applicant Companies.

3. It is therefore now directed that the notice for final hearing is fixed for 7th January 2020 and shall be advertised in the daily newspapers namely, the "Financial Express" in English and "Jansatta" in Hindi (Delhi Edition), not less than 10 days before the aforesaid date fixed for hearing.

4. In addition to the above public notice, the applicant companies shall individually serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs (b)Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs (c) the Income Tax Department (d) Official Liquidator and to such other Sectoral Regulatory Authorities who may govern the working of the respective Companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

5. Both the applicants, shall at least 7 days before the date of hearing of the petition file an affidavit of service in relation to the paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator.

6. Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may file their objections on or before the date of hearing fixed herein, failing which it will be considered that there

is no objection on the part of the authorities to the approval of the Scheme by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.

-Sd-

(L.N Gupta)
Member (T)

-Sd-

(Ina Malhotra)
Member (J)